

23NWCV00388 23NWCV00388

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CREDITORS

ADJUSTMENT BUREAU, INC. v. KJAN CONSTRUCTION, INC.

CASE NO.: 23NWCV00388

HEARING: 07/14/2026 @ 9:30 AM

#11

TENTATIVE ORDER

I.

Plaintiff Creditors Adjustment Bureau,
Inc.'s motion for reconsideration is deemed a motion for a new trial and
GRANTED.

II.

The judgment will be amended to award
pre-judgment interest in the amount of \$143,682.94.

Moving party to give notice.

Plaintiff Creditors Adjustment Bureau, Inc. (Plaintiff) moves
for reconsideration of the Court's decision not to award pre-judgment interest
at the Court Trial.

Background

On February 3, 2023, Plaintiff filed this breach of action contract against Defendant KJAN Construction, Inc. and Does 1 through 10, inclusive. Plaintiff alleges that its assignor and Defendant entered into a written agreement in which Plaintiff's assignor agreed to provide workers compensation insurance to Defendant and Defendant agreed to pay the premiums; however, Defendant breached the agreement by failing to pay the premiums. (Complaint, ¶¶ 11-15.) The complaint asserts four causes of action: (1) breach of contract, (2) open book account, (3) account stated, and (4) reasonable value.

On June 9, 2023, the Court entered Default Judgment as to Defendant. On June 21, 2023, the Court signed the parties' Stipulation to Vacate Default and Default Judgment Against Defendant. On June 30, 2023, Defendant filed a General Denial.

On September 5, 2025, the Court granted Counsel for Defendant's Motion to be Relieved as Counsel.

On March 4, 2026, following a Court Trial in which there was no appearance by Defendant, the Court found in favor of Plaintiff and against Defendant.

On March 13, 2026, Plaintiff filed the instant motion for reconsideration.

On March 19, 2026, the Court entered judgment in favor of Plaintiff.

Legal Standard

"[A] motion for a new trial can be granted only on one of the grounds enumerated in the statute." (Fomco, Inc. v. Joe Maggio, Inc. (1961) 55 Cal.2d 162, 166.) Pursuant to Code of Civil Procedure section 657, "[t]he verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

5. Excessive or inadequate damages.

6. Insufficiency of the evidence to

justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law, occurring at the trial and excepted to by the party making the application.

(Code Civ. Proc., § 657.) "A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Code Civ. Proc., § 657.)

Discussion

Plaintiff moves for reconsideration of the Court's decision not to award pre-judgment interest at the Court Trial. This motion is unopposed.

As a preliminary matter, "[a] trial court may not rule on a motion for reconsideration after entry of judgment." (Sole Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 187, 192.) However, " '[t]he nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.'" (Id., at p. 193 [considering a motion regardless of its label is consistent with the Court's inherent authority to manage and control its docket under Code Civ. Proc., § 128, subd. (a).]) "[S]everal courts have tacitly approved the treatment of a motion for reconsideration as a motion for a new trial, and vice versa." (Ibid. [affirming trial court's authority to treat a motion for reconsideration filed on the same day judgment was entered as a motion for a new trial].) A motion for a new trial is timely if notice is made "[a]fter the decision is rendered and before the entry of judgment." (Code Civ. Proc., § 659, subd. (a)(1).)

As judgment was entered after this motion was filed but before the hearing on this motion, the Court considers this motion for reconsideration as a motion for a new trial based on inadequate damages. (See Watson Bowman Acme Corp. v. RGW Construction, Inc. (2016) 2 Cal.App.5th 279, 297 ["The fact that [the prejudgment interest] request was not labeled as motion for new trial or as a motion for modification under Code of Civil

Procedure section 657 does not render its format defective.”].)

Plaintiff argues that at the Court Trial, Plaintiff presented its calculation for pre-judgment interest under Civil Code section 3287, but the Court denied Plaintiff’s request on the grounds that the “date certain” is not determined until judgment is entered at which point, interest would begin to run.

Plaintiff states that it presented a witness, Maria Madueno from Plaintiff’s assignor, State Compensation Insurance Fund (SCIF), who testified that SCIF issued worker’s compensation insurance policies to Defendant. SCIF generated a 2020 Final Audit Statement and a 2021 Final Audit Statement showing Defendant’s amounts owing by certain due dates. (Brown Decl., ¶¶ 3-5, Exhs. 1-3.)

Civil Code section 3287 provides: “A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt.” Liability for prejudgment interest “occurs only when the defendant knows or can calculate the amount owed and does not pay.” (Watson Bowman Acme Corp., supra, 2 Cal.App.5th at p. 293.)

Upon review of the evidence submitted at the Court Trial and submitted again here, the Court finds that the SCIF Final Audit Statements provide for the amount due by a date certain based on the 2020 and 2021 worker’s compensation policies.

Accordingly, the Court GRANTS Plaintiff’s motion for a new trial. The Court will amend the judgment to reflect pre-judgment interest in the amount of \$143,682.94.